

#	Case Name	Tentative
1	25-01477343 <i>Alphapet, Inc. vs. Wagner</i>	Motion for Attorney Fees Defendants’ Motion for Attorney Fees and Costs on Granting of Anti-SLAPP Motion is GRANTED in part. Procedural History: In the FAC, Plaintiff generally alleges the Plaintiff LLC started its business with a \$667,000 contribution from its majority member, Homman Holding. (FAC, ¶ 12.) The lawyer Defendants represented the LLC as well as the individual members Harold Epps, Liping Wang, and Liming Wang, who allegedly engaged in actions against the interests of the LLC including taking/wrongfully disposing of its assets and harming Homman’s capital investment. (¶¶ 13, 33.) On 11/20/25, the Court granted Defendants’ anti-SLAPP motion to strike portions of Plaintiff’s First Amended Complaint (FAC). The Court granted the motion as to paragraphs 35, 36, 41, 53, and 62 which alleged litigation privileged conduct related to filing and/or service of specific documents in the course of litigation. (Civ. Code § 47.) The Court denied the motion as to paragraphs 25 and 26, which were professional negligence allegations falling outside the protection of the anti-SLAPP statute under Freeman v. Schack (2007) 154 Cal.App.4th 719 and Kolar v. Donahue, McIntosh & Hammerton (2006) 145 Cal.App.4th 1532. Defendants now seek attorney fees and costs of \$45,596.04 related to their successful anti-SLAPP motion. Legal Standard: Code of Civil Procedure section 425.16(c)(1) provides, “Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” However, a party who prevails on an anti-SLAPP motion which is only an “illusory” or “minimal and insignificant” victory with no “practical effect” is not entitled to recover their attorney fees. (See Lin v. City of Pleasanton (2009) 176 Cal.App.4th 408, 425–426; Moran v. Endres (2006) 135 Cal.App.4th 952, 954–955.) Merits: Defendants contend they achieved a substantial practical benefit from their successful anti-SLAPP motion because all paragraphs related to their alleged filing and service of documents in the underlying litigation were removed from the FAC.

		Plaintiff contends the motion did not have a practical effect because it did not entirely dispose of any entire cause of action and only removed five incidental paragraphs of the 71-paragraph FAC. Rather, Plaintiff argues the motion “back-fired on defendants because the result was an even stronger amended pleading which asserts the same core claims as the one which defendants’ motion challenged.” (Opp. at p. 2:2-4.) Defendants have also filed a motion to strike the SAC, set for hearing on July 16. The Court finds Defendants achieved a substantial practical benefit from their successful anti-SLAPP motion. The California case law cited above does not require Defendants to prevail as to an entire cause of action in order to recover fees. The disputed paragraphs of the FAC included factual allegations that formed a substantial part of the basis for Plaintiff’s professional negligence claim against Defendants. Specifically, Defendants removed the allegations that they improperly “concealed the sales of AlphaPet” in court filings and appearances and prevented the disclosure of records in response to subpoenas in order to conceal the alleged conversion of the business. (¶¶ 35, 36.) Defending against such claims would likely have required substantial discovery, investigation, and other preparation. Defendants substantially narrowed Plaintiff’s claims against them and are entitled to attorney fees related to the motion. As to the amount of fees, Defendants state they actually incurred attorney fees of \$14,593.50 related to the present motion, based on 17.9 hours of associate time at \$315/hour and 19.9 hours of partner time at \$450/hour. (Saunders Decl., ¶¶ 4-9.) Defendants also incurred filing costs of \$180 for each motion. However, Defendants seek to adjust attorney Jennifer Saunders’s rate upwards to \$1,203.07 per hour based on her 40+ years of experience under the Laffey Matrix, which is a fee schedule sometimes used by federal courts to determine. (Saunders Decl., Ex. B.) The Court finds Defendants’ actually-incurred fees were within a reasonable range for handling a relatively straightforward anti-SLAPP motion in Orange County and declines to adjust the rates upward under the Laffey Matrix, which is informative but has not been held to be binding on California courts. Because the Court only granted the SLAPP motion as to 80% of the allegations addressed in the motion, the amount of fees will be reduced by 20%. Therefore, the motion is granted in the total amount of \$11,962.80 (fees of \$14,593.50 + costs of \$360 x .8).
2	24-01371395 <i>Battersby vs. Hutchens</i>	1) Motion for Judgment on the Pleadings 2) Motion for Sanctions Motion 1: Motion for Judgment on the Pleadings